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CITY OF BERKELEY

BERKELEY CITY COUNCIL SPECIAL MEETING

September 29, 2026

WEBVTT

1
00:00:10.080 --> 00:00:24.650
Boardroom: All right. Hello, everyone. Good evening. I'm calling the Berkeley City Council meeting, special meeting to order. Today is Tuesday, September 29th, 2026, and it is 4:08 p.m. Can we please start off with the roll?

2
00:00:26.330 --> 00:00:41.119
Boardroom: Thank you, Mayor, and before we get to roll, I just want to mention that Councilmember Humbert is participating remotely this evening under the Just Cause, provision of the Brown Act, so we're just gonna go ahead and go through that script before we start the meeting.

3
00:00:42.160 --> 00:00:57.830
Boardroom: Councilmember Humber is intending to participate in the meeting remotely pursuant to the Brown Act under the just cause justification. A quorum of the Council is participating in person at a single physical location that is identified on the agenda, open to the public, within the boundaries of the agency.

4
00:00:57.830 --> 00:01:02.359
Boardroom: and meets accessibility requirements. This satisfies the requirements of the Brown Act.

5
00:01:03.110 --> 00:01:08.090
Boardroom: Councilmember Humbert has notified us of their need to participate remotely.

6
00:01:08.810 --> 00:01:16.319
Boardroom: Councilmember Humber, if you would please provide a general description of the circumstances relating to your need to appear remotely at this meeting.

7
00:01:17.850 --> 00:01:27.179

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Mark Humbert: Thank you, Madam Clerk. I woke up this morning with a rotten cold, and I don't want to expose my colleagues or anyone else in the chambers to it.

8
00:01:28.300 --> 00:01:32.140
Boardroom: Thank you, Councilmember. Sorry to hear you're not feeling well.

9
00:01:32.320 --> 00:01:46.269
Boardroom: If you could also please disclose, whether there are any other individuals 18 years of age or older, if they are present in the room at your location, and if so, the general nature of your relationship with such individuals.

10
00:01:46.630 --> 00:01:48.260
Mark Humbert: There is no one else present.

11
00:01:48.650 --> 00:01:55.480
Boardroom: Thank you. Councilmember Humber, you're reminded that you must participate through both audio and visual technology. Thank you.

12
00:01:55.760 --> 00:01:56.600
Mark Humbert: Thank you.

13
00:01:56.600 --> 00:01:59.589
Boardroom: All right, and now we will move on to roll call.

14
00:01:59.870 --> 00:02:03.600
Boardroom: Councilmember Kesarwani? Here. Taplin?

15
00:02:04.300 --> 00:02:06.410
Boardroom: Is absent. Bartlett.

16
00:02:06.780 --> 00:02:14.709
Boardroom: is absent. Tragub? Present. O'Keefe? Here. Blackaby? Here. Munapara? Here. Humbert?

17
00:02:14.990 --> 00:02:15.680
Mark Humbert: Present.

18
00:02:16.070 --> 00:02:17.469

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Boardroom: Mayor Ishii.

19
00:02:17.600 --> 00:02:19.460
Boardroom: Here. Thank you.

20
00:02:20.060 --> 00:02:24.140
Boardroom: Okay. Thank you very much. And I hope you feel better, Councilmember.

21
00:02:24.670 --> 00:02:45.020
Boardroom: All right. So we have one item on our agenda this evening, and it is old business. The item is item one, a resolution reinstating the Berkeley Police Department's ability to use tear gas for critical life-threatening incidents only, and lifting the COVID-19 moratorium on smoke and

22
00:02:45.020 --> 00:02:52.699
Boardroom: Oloriosin? How do you say that, Chief? OC spray. Anyway, and, from Councilmember Kesarwani.

23
00:02:52.730 --> 00:03:06.150
Boardroom: And then item 1B, social justice implications of proposed use of controlled weapons and other policing tools, again, continued from the September 15, 2026 meeting from the Peace and Justice Commission.

24
00:03:06.400 --> 00:03:25.900
Boardroom: So, for folks that were not there during that meeting, basically we had technical difficulties, which meant that we really needed to stop the meeting, and so we are here again, but we will not be doing the presentations over again. We will just be, and in fact, actually, even though we had

25
00:03:25.950 --> 00:03:40.239
Boardroom: pretty much finished the public comment. There were 2 or 3 more folks that were left online. So we will take public comment again on this item, and then we will also hear, of course, from our council members for deliberation, and then a vote.

26
00:03:40.370 --> 00:03:44.289
Boardroom: So we will start us off with the public comment.

27
00:03:46.400 --> 00:03:52.649

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Boardroom: So, if you have public comment on this item, there's only one item on this special agenda, please come on up.

28
00:03:59.090 --> 00:03:59.860
Boardroom: Come on.

29
00:04:01.790 --> 00:04:05.759
Boardroom: Or if you're online, you can raise your hand.

30
00:04:06.240 --> 00:04:14.940
Boardroom: I'm extremely concerned about this tear gas addition to the police toy box.

31
00:04:15.020 --> 00:04:39.029
Boardroom: Because — oh, by the way, I'm from District 5. We have a good neighborhood meat club that's really concerned about things. I'm particularly concerned because mental health — one of the things the police suggested was that there would be a hostage situation, and this would be good in a hostage situation. Now, I can't remember any hostage situations at all.

32
00:04:39.030 --> 00:04:57.819
Boardroom: in Berkeley ever, but I do know that mentally ill people frequently will lock themselves inside and cause a big ruckus and be threatening, and I am afraid that that's exactly the psychotic break someone who's having a mental health issue

33
00:04:57.820 --> 00:05:00.479
Boardroom: A serious mental illness, schizophrenic.

34
00:05:00.480 --> 00:05:09.340
Boardroom: Those are the people who are going to get tear gassed, not anybody else. I just don't see the need for this. Help the homeless, help people who need it.

35
00:05:09.610 --> 00:05:10.659
Boardroom: Thank you.

36
00:05:20.800 --> 00:05:23.149
Boardroom: Hello, I'm Sally Nelson.

37
00:05:23.650 --> 00:05:35.760

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Boardroom: Why are we even thinking about allowing the spraying of harsh chemicals on people? Along with the harsh chemicals is enough lead that is likely 80 times the amount considered to be normal.

38
00:05:36.000 --> 00:05:40.690
Boardroom: Tear gas is known to inflict long-term damage on someone's lungs.

39
00:05:40.940 --> 00:05:44.280
Boardroom: And that includes anyone who happens to be nearby.

40
00:05:45.080 --> 00:05:53.009
Boardroom: Aren't the laws and ordinances passed in Berkeley supposed to be in line with the U.S. Constitution, including the First Amendment?

41
00:05:53.350 --> 00:06:04.420
Boardroom: Also, we haven't heard a word about the cost of reintroducing and maintaining tear gas and pepper spray. Berkeley does have a budget deficit of $30 million.

42
00:06:04.530 --> 00:06:06.440
Boardroom: Why add to it?

43
00:06:06.560 --> 00:06:12.859
Boardroom: I urge you to vote no on removing the ban on the use of tear gas, smoke, and pepper spray.

44
00:06:13.120 --> 00:06:14.090
Boardroom: Thank you.

45
00:06:14.500 --> 00:06:15.579
Boardroom: Thank you.

46
00:06:21.580 --> 00:06:23.689
Boardroom: Mayor, City Council.

47
00:06:23.930 --> 00:06:35.059
Boardroom: I'm Marilyn Simons, District 1, and I also would urge you to think very seriously about rescinding the ban on chemical weapons.

48
00:06:35.340 --> 00:06:36.610

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Boardroom: And tear gas.

49
00:06:37.110 --> 00:06:40.170
Boardroom: I believe when the police gave,

50
00:06:40.280 --> 00:06:43.530
Boardroom: Information at the last meeting on this topic.

51
00:06:43.770 --> 00:06:58.830
Boardroom: They could recall only, I think, 3 incidents in which tear gas or these weapons might have been useful, and in fact, if my memory does not fail me, all 3 incidents were resolved without

52
00:06:58.940 --> 00:07:02.189
Boardroom: the use of tear gas because it was then banned.

53
00:07:02.740 --> 00:07:19.720
Boardroom: Pepper spray is banned for use in war by Article 1.5 of the Chemical Weapons Convention, which bans the use of all riot control agency… agents, pardon me, in warfare, whether lethal, less than lethal, or even non-lethal.

54
00:07:20.080 --> 00:07:25.069
Boardroom: It's of great harm to anyone it comes in contact with. Thank you.

55
00:07:31.120 --> 00:07:47.260
Boardroom: Hi, good afternoon. My name is Mari Mendonca, running for City Council District 8. We've heard countless testimony on many occasions around this issue. Piggybacking on the previous comments that were just said, you know the chemical, harm that it causes.

56
00:07:47.490 --> 00:08:01.250
Boardroom: We also need to highlight the accountability that is not enforced in Berkeley around police accountability, so putting the decision in the hands of the discretion in the hands of our officers, of which the city, nor the city manager,

57
00:08:01.750 --> 00:08:21.970
Boardroom: holds them accountable, nor do you let our Police Accountability Board do their work to investigate when things have happened. I think you need to listen to the countless hours of testimony of the community that we are not in agreement and do not support this,

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and have asked you multiple multiple times to consider the humanity of our

58
00:08:21.970 --> 00:08:32.850
Boardroom: everyone in our community and the dangers of the substances that you're proposing to allow for the discretion of folks who are not accountable to, decide to use. Thank you.

59
00:08:32.850 --> 00:08:33.720
Boardroom: Thank you.

60
00:08:38.510 --> 00:08:43.839
Boardroom: Hi everybody, I've got a minute by from Lisa Teager, please,

61
00:08:44.179 --> 00:08:49.279
Boardroom: A little background here, I'm 79 years old, I've had congestive heart failure.

62
00:08:49.830 --> 00:08:54.359
Boardroom: I have emphysema and I have a heart valve replacement.

63
00:08:54.750 --> 00:09:00.139
Boardroom: If any of these fuckers… Tear gases me. Theoretically, I could die.

64
00:09:00.350 --> 00:09:11.399
Boardroom: And if I die, I'm gonna come back and haunt every single one of you that voted in favor of this. There's no good reason to have tear gas used against people in this country at all.

65
00:09:11.760 --> 00:09:15.760
Boardroom: I mean, it happens in the occupied West Bank.

66
00:09:16.000 --> 00:09:29.169
Boardroom: They use tear gas there. They also use white phosphorus, which burns through to the bone. They use it on children. It should not be happening here in Berkeley at all. There's no reason for that.

67
00:09:29.360 --> 00:09:36.799
Boardroom: And when I hear the consideration of something like that, I'm saying, where is the humanity? I mean.

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68
00:09:36.950 --> 00:09:39.880
Boardroom: Do people have calluses over their hearts?

69
00:09:40.250 --> 00:09:52.440
Boardroom: Is their compassion gone to who knows where and why has it gone there? We are people and we will respond. We will resist any.

70
00:09:52.550 --> 00:10:11.350
Boardroom: type of situation like that, whether you pepper spray us, I've been pepper sprayed before in Oakland. Tear gas, I've been tear gas in Berkeley and Oakland. There will be opposition to that, and the way things are escalating in severity in this country, the escalation will grow

71
00:10:12.860 --> 00:10:17.209
Boardroom: As… I'm not going to say anymore. Thank you very much.

72
00:10:17.520 --> 00:10:18.679
Boardroom: Thank you.

73
00:10:23.890 --> 00:10:26.800
Boardroom: Hello, my name is Alexander Nicely.

74
00:10:30.360 --> 00:10:36.680
Boardroom: I was gonna say a bunch of stuff, but, like, the ones previous to me kind of said it all.

75
00:10:37.060 --> 00:10:43.080
Boardroom: And also, I want to point out that, like, we're having this thing…

76
00:10:43.600 --> 00:10:56.259
Boardroom: in the beginning. Like, oh, we all get to get our grievances out in the beginning, but, like, y'all get the last word. And I think that's kind of hilarious, and I think we should point that out, too. And,

77
00:10:57.440 --> 00:10:59.340
Boardroom: That's it. That's it.

78
00:11:00.930 --> 00:11:06.470

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Boardroom: Thanks. Chief, do you mind sharing your mic over for the speaker? Thank you.

79
00:11:18.520 --> 00:11:26.420
Boardroom: I… Been in a domestic violence situation where I was struggling to breathe because of being choked.

80
00:11:26.760 --> 00:11:35.920
Boardroom: And had I also been being held hostage, being tear-gassed along with my assailant, one of the situations that was brought up by the police

81
00:11:36.240 --> 00:11:38.970
Boardroom: Last meeting, it wouldn't have helped.

82
00:11:40.220 --> 00:11:41.010
Boardroom: Like.

83
00:11:42.770 --> 00:11:49.780
Boardroom: All of the three situations that they brought up, that they would have… Wanted to use tear gas.

84
00:11:50.240 --> 00:11:56.969
Boardroom: Or would have considered using tear gas had been available, were able to be resolved without the use of tear gas.

85
00:11:57.530 --> 00:12:01.609
Boardroom: Furthermore, Giving the police access to tear gas.

86
00:12:02.490 --> 00:12:06.269
Boardroom: That's supposed to only be used in severe situations.

87
00:12:06.390 --> 00:12:08.159
Boardroom: Can tempt them to use it.

88
00:12:08.590 --> 00:12:17.479
Boardroom: Even if it's explicitly prohibited, tempt them to use it as crowd control, or… Otherwise, interfering with protests.

89
00:12:17.790 --> 00:12:18.700
Boardroom: Thank you.

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90
00:12:19.530 --> 00:12:20.580
Boardroom: Thank you.

91
00:12:25.350 --> 00:12:26.250
Boardroom: Thanks, Chief.

92
00:12:27.660 --> 00:12:28.509
Boardroom: This is on.

93
00:12:29.690 --> 00:12:34.659
Boardroom: I'm Chris Staff, a long-time preschool teacher in Berkeley. I oppose the reauthorization.

94
00:12:35.690 --> 00:12:47.070
Boardroom: Let's look at the details. For one thing, I want to agree with all the comments people said before me, but it also maintains the use of tear gas solely for the use of crowd control. Well, we don't trust cops.

95
00:12:47.280 --> 00:12:51.879
Boardroom: And as the current authoritarian political climate ramps up.

96
00:12:52.500 --> 00:13:05.300
Boardroom: They will use tear gas to control our protests and just declare that a demonstrator was unruly and it warranted it. But let's zoom out to the bigger picture. This is the kind of decision we look back on.

97
00:13:05.510 --> 00:13:07.539
Boardroom: And rue our mistake.

98
00:13:07.840 --> 00:13:18.280
Boardroom: We will wonder, how did we let police state power grow so out of control? Instead, we should be redoubling our restraints on police power, especially at this time.

99
00:13:18.660 --> 00:13:21.409
Boardroom: If we relinquish our power, excuse me.

100
00:13:21.510 --> 00:13:27.680

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Boardroom: Benjamin Franklin said, if we relinquish our liberty for order, we will lose both.

101
00:13:28.870 --> 00:13:31.200
Boardroom: Thank you.

102
00:13:35.590 --> 00:13:37.540
Boardroom: Kelly Hammergren.

103
00:13:37.700 --> 00:13:57.280
Boardroom: You have to get to page 84 in your packet to read the paragraph from the PAB, and I'll just read it to you. The PAB previously informed Council in our January 26, 2026 correspondence that the PAB questions the necessity of reauthorizing

104
00:13:57.280 --> 00:14:10.629
Boardroom: tear gas, given the undisputed facts that the BPD has only used tear gas three times over the last several decades, and two of those times occurred in crowd control contexts.

105
00:14:10.630 --> 00:14:26.459
Boardroom: that would be prohibited by the Councilmember's resolution. We continue to question whether the proposal reintroduces a tool associated with significant community concern for marginal operational benefit.

106
00:14:26.690 --> 00:14:36.019
Boardroom: And I think that's what we should be considering. This is marginal. Now, we do have good representation from our police department tonight in their gray shirts.

107
00:14:36.240 --> 00:14:39.399
Boardroom: Behind me. Thanks. Thank you.

108
00:14:46.980 --> 00:14:56.899
Boardroom: Good evening, Madam Mayor and honorable members of the council. My name is Derek Rady. I'm a police sergeant with BPD, where I've served for 15 years and a current member of the Berkeley Special Response Team.

109
00:14:57.260 --> 00:15:04.890
Boardroom: Tonight, I'm speaking on behalf of the Berkeley Police Association in support of restoring this essential tool for our special response team.

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110
00:15:05.180 --> 00:15:13.299
Boardroom: As a member of our special response team, my job is to step directly into our city's most volatile and high risk situations to protect everybody involved.

111
00:15:13.410 --> 00:15:22.029
Boardroom: Our goals and driving philosophy during any high-risk incident is to preserve life and a peaceful resolution.

112
00:15:22.820 --> 00:15:37.119
Boardroom: In order to accomplish that goal, our team needs options. Just as we wouldn't send firefighters into a house fire or a wildfire without essential equipment, we shouldn't send our tactical team into critical incidents stripped of a proven tool.

113
00:15:38.150 --> 00:15:51.519
Boardroom: Tear gas is an industry standard de-escalation tool that allows us time, distance, and a higher level of control so we can work towards our goal of a safe resolution for all. I have two to resume. Thank you.

114
00:15:52.520 --> 00:16:08.279
Boardroom: To my knowledge, BPD is the only department in the nation whose tactical team is prohibited from using this potentially life-saving tool. Go, Berkeley! The tool that will be reserved for those extremely high-risk, low-frequency incidents where lives are at risk.

115
00:16:09.010 --> 00:16:16.819
Boardroom: Situations where the danger to the community is so high, we can't just walk away. Situations like armed barricades or a hostage incident.

116
00:16:17.010 --> 00:16:22.139
Boardroom: I've experienced tear gas on numerous occasions. Yes, it is unpleasant, but it's brief.

117
00:16:23.140 --> 00:16:34.439
Boardroom: And that very temporary irritant is vastly better outcome than the alternatives of higher levels of force that may be required because we haven't been afforded the tools or the ability to slow down an incident.

118

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00:16:34.740 --> 00:16:39.910
Boardroom: As a son, father, husband, and an officer, I care deeply about this community.

119
00:16:41.040 --> 00:16:54.139
Boardroom: The proposed policy before you tonight is thoughtfully crafted and narrowly tailored in close collaboration with the Berkeley Police Accountability Board. It would not be used during First Assembly… First Assembly… First…

120
00:16:54.650 --> 00:16:55.370
Boardroom: That's it.

121
00:16:55.980 --> 00:17:02.650
Boardroom: It will not be used during First Amendment assemblies. It will not be used during encampment, abatements.

122
00:17:03.100 --> 00:17:20.489
Boardroom: It will be reserved for highly dangerous situations. Restoring this option costs the city virtually nothing, but it demonstrates a clear commitment to the sanctity of human life, protecting our officers, victims, and the individual we are called upon to safely apprehend. Thank you.

123
00:17:21.900 --> 00:17:22.889
Boardroom: Thank you.

124
00:17:28.170 --> 00:17:36.259
Boardroom: My name is Kat. I don't understand what we're doing here again. Months and months of public comment from small meetings

125
00:17:36.420 --> 00:17:42.300
Boardroom: In the building in Milvia, and we're still talking about this. As the speaker, the pig before me said.

126
00:17:42.500 --> 00:17:52.829
Boardroom: This is a weapon of war. This is a weapon of war. And you call it a tool? It is a weapon of war. We heard other speakers talk about

127
00:17:52.970 --> 00:18:05.480
Boardroom: how it is against international law. And what does Berkeley do? Well, on June 4th, 2025, they used smoke bombs, pepper ball sprays, on the unhoused community.

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128
00:18:05.480 --> 00:18:13.870
Boardroom: In that very dangerous situation where people were sleeping, aroused from sleep. That's what the city of Berkeley does.

129
00:18:13.980 --> 00:18:30.940
Boardroom: The city of Berkeley needs to listen to its citizens, not the cops, to its community, who says no, and we've said no and no again. And you see our voices, you hear our voices, because we are incensed that you're not listening to us.

130
00:18:39.480 --> 00:18:49.279
Boardroom: Today, we're witnessing the cowardice of the council scheduling a meeting at 4:00 when the majority of people of the community can't come here and speak. It's cowardice.

131
00:18:49.390 --> 00:18:52.799
Boardroom: Cowing to the police lobby, that's cowardice.

132
00:18:53.170 --> 00:19:03.700
Boardroom: This is about, this is about creating a police state when you have a government that doesn't listen to the public. That's what we got, that's why we got Trump.

133
00:19:04.160 --> 00:19:24.130
Boardroom: That's why we have a Democratic Party that goes for war. That's why we have a citizen that don't show up to vote, because they no longer believe in the system. And you're going to prove that the system is broken today if you pass this legislation that's going to give tear gas, a tool for torture, to the police.

134
00:19:24.210 --> 00:19:35.120
Boardroom: That's what it is. It's a tool for torture, it's internationally recognized as a tool for torture, and when you make torture legal, when you make it okay.

135
00:19:35.700 --> 00:19:42.060
Boardroom: What else is, what's going to come next? What's the next thing? You're going to have police dogs? You're going to have, what are you going to have next? Think about that.

136
00:19:46.810 --> 00:19:50.610
Boardroom: Thank you. George Littman, representing Pastor Duane.

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137
00:19:50.810 --> 00:19:59.590
Boardroom: Chair of the Peace and Justice Commission. You've already heard enough from me and from us, but I just want to underline two.

138
00:20:00.080 --> 00:20:13.770
Boardroom: hopefully useful points that we made that we didn't get to. The Commission reminds the Council of the precautionary principle that it adopted in 2006. The principle is an approach to decision-making that prioritizes harm

139
00:20:14.360 --> 00:20:25.739
Boardroom: preventing harm to human health and the environment. The principle shifts the burden of proof, requiring actions to be proven safe, rather than waiting for proof of damage to restrict them.

140
00:20:25.870 --> 00:20:37.940
Boardroom: We recommend that lacking proof of safety, the proposal to authorize CS, pepper spray, and smoke should not be approved. Secondly, a positive suggestion, we request the city manager

141
00:20:38.280 --> 00:20:45.610
Boardroom: To engage in an academic institution such as UC Berkeley, to study the health impacts of tear gas and other chemical weapons.

142
00:20:45.950 --> 00:20:51.900
Boardroom: and investigate possible alternatives to the use of chemical weapons. Thank you. Thanks, George.

143
00:20:54.890 --> 00:20:57.989
Boardroom: I'm back here again. Can I get a minute from the crowd?

144
00:20:58.370 --> 00:20:59.740
Boardroom: Anybody want to give a minute?

145
00:21:01.520 --> 00:21:03.379
Boardroom: Thank you. Just a gentleman right here.

146
00:21:05.410 --> 00:21:12.020
Boardroom: I'm back again, so I'll repeat what I said last time, so that everyone can remember. Two minutes, thank you.

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147
00:21:12.710 --> 00:21:25.850
Boardroom: I'll be plain about the situation facing us. It's easy to cast the first stone when you're the last person who would be impacted by this change of policy. It is people like me, it's the student population who will face the brunt of these attacks.

148
00:21:26.150 --> 00:21:35.279
Boardroom: My name is Derek Rodriguez. I'm not only a student at UC Berkeley, a community leader, but I'm also an Army veteran and a part-time National Guardsman.

149
00:21:36.010 --> 00:21:43.980
Boardroom: If you resume use of chemical weapons, perhaps I will have no choice but to educate my fellow students on how to neutralize CS gas or tear gas.

150
00:21:44.210 --> 00:21:49.120
Boardroom: All you are doing is wasting time and money on resources that aren't just foolproof.

151
00:21:49.680 --> 00:21:53.299
Boardroom: Just putting the public in unnecessary danger.

152
00:21:54.080 --> 00:22:09.380
Boardroom: And I know how fiscally irresponsible it is to buy contracted equipment like this. It's a racket from the private sector to overcharge law enforcement and the military on inflated contracts, the same way you are wasting money on mass surveillance against our people.

153
00:22:09.760 --> 00:22:22.790
Boardroom: Let's see you try and pull this on a peaceful demonstration, because I will be there and we will be undeterred. You want to waste money? That is your prerogative. Use it against harmless civilians? We will truly make sure that money is wasted.

154
00:22:22.860 --> 00:22:42.290
Boardroom: This is not a method to keep us safe. This is a method to keep us down. If this passes tonight, I invite any resident in this room to come see me. I invite you all to a small discussion on how to protect ourselves because we as a community look after one another. I don't know where your ideas come from, but here in Berkeley, we defend our liberty.

155
00:22:42.500 --> 00:22:48.259

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Boardroom: You can try and shut our demonstrations down with weapons of war, but you can never silence the voice of the people.

156
00:22:54.680 --> 00:22:55.390
Boardroom: Most of them.

157
00:22:55.910 --> 00:22:56.780
Boardroom: Yeah.

158
00:22:59.460 --> 00:23:07.019
Boardroom: Hello, I understand that there's a person named Ray back there who is offering me an extra minute. Thank you.

159
00:23:07.450 --> 00:23:21.539
Boardroom: I'm Laura X from the Women's History Library and a whole lot else in Berkeley, National Clearinghouse on Marital and Date Rape. But I came here in '63, which means

160
00:23:21.540 --> 00:23:31.539
Boardroom: I was aware of the tear gassing in 1960 with the HUAC demonstration. In fact, I was adopted by the family.

161
00:23:31.620 --> 00:23:34.440
Boardroom: that that happened at one of.

162
00:23:34.680 --> 00:23:36.280
Boardroom: Not grammar, but.

163
00:23:36.430 --> 00:23:48.609
Boardroom: You get the point. Okay, the next was, we were tear gassed in the free speech movement on the campus. If you can imagine the horror of that. And the next I want to tell you about I didn't already tell you.

164
00:23:48.940 --> 00:23:53.320
Boardroom: Any previous comments about and how it

165
00:23:53.500 --> 00:24:03.040
Boardroom: Burns in everyone's soul in this country. But in Berkeley, there was an inadvertent tear gassing and the following way.

166
00:24:03.140 --> 00:24:11.060

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Boardroom: During the Vietnam War protests, there was a particular line of march.

167
00:24:11.180 --> 00:24:25.150
Boardroom: which caused us to have a place for toddlers and other children to be far away from it on Benvenue, and the male leaders so disconnected from their own children and others.

168
00:24:25.670 --> 00:24:29.569
Boardroom: Change the line of march without checking in with the women.

169
00:24:29.710 --> 00:24:39.229
Boardroom: out where the children were, and so the babies were gassed. I will never get over that as long as I live, and not just because it's your basic male chauvinism.

170
00:24:39.340 --> 00:24:50.400
Boardroom: But because I am chemically sensitive myself, genetically and every day, and it's one of my disabilities.

171
00:24:50.690 --> 00:24:56.170
Boardroom: I very much worry for the people who were two and three.

172
00:24:56.480 --> 00:25:13.589
Boardroom: Back in 1967. And then, of course, we were gassed from the… from the helicopters. Whoops. Thank you. Thanks for your comment. In 1969 and 70. I beg your pardon? Sorry, I think your time… I think the timer just went off. Yes, I get it. I'm… I'm going. Thank you. I just wanted to put the dates on. Thank you.

173
00:25:20.020 --> 00:25:31.429
Boardroom: You have already spoken, actually, so… You can't, actually. He's already spoken. If you had given it to him before, he could have used it, but he's finished now. Come on up.

174
00:25:36.650 --> 00:25:45.329
Boardroom: Hi everyone, you know, familiar face. Gordon Gilmore at the Berkeley Outreach Coalition.

175
00:25:45.750 --> 00:25:46.760
Boardroom: And there we go.

176

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00:25:47.360 --> 00:26:01.960
Boardroom: First, if you're able to consider spending funds like this on chemical weapons to perpetuate the looming threat of potential violence by the city, then you can't use the budget deficit as a rationalization for cutting services that can care for our community.

177
00:26:02.420 --> 00:26:14.889
Boardroom: Second, following from this, maintaining the image of magnanimity and kindness toward your citizens while seriously considering lifting this ban and investing more in potential for city-enacted violence.

178
00:26:14.890 --> 00:26:25.239
Boardroom: instead of investing in care for community as nearly unanimous testimony from the community is calling for is a narcissistically abusive relationship to your constituency.

179
00:26:25.510 --> 00:26:29.010
Boardroom: Don't allow your relationship to Berkeley to become pathological.

180
00:26:29.300 --> 00:26:30.100
Boardroom: Thank you.

181
00:26:47.820 --> 00:26:51.439
Boardroom: I have an extra minute from this good woman over here.

182
00:26:54.230 --> 00:26:56.720
Boardroom: I started to cry walking up here.

183
00:26:56.970 --> 00:27:06.889
Boardroom: Because I deeply respect the police officers who are trying to do a good job. We need police officers. We need all of you. We need all of us.

184
00:27:08.100 --> 00:27:09.730
Boardroom: But.

185
00:27:11.730 --> 00:27:14.190
Boardroom: Who defines what a crowd is?

186
00:27:14.640 --> 00:27:19.400

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Boardroom: Is it 3 people, 5 people, 10 people? I don't know, is somebody gonna have the time to count?

187
00:27:20.140 --> 00:27:29.019
Boardroom: So crowd control, it won't be used. But then there's serious threat of injury and maybe even death. Oh, who's going to decide that?

188
00:27:30.410 --> 00:27:37.739
Boardroom: It's like… We're relying on what, and the consequence is what.

189
00:27:38.910 --> 00:27:41.529
Boardroom: I need tools in construction.

190
00:27:42.330 --> 00:27:58.969
Boardroom: And I need to know how to use them properly. And then, if a beam is falling, I might not. I might slip, and oops! Then it's too late. And part of me also started to cry, because all of us have heard all of this before.

191
00:27:59.450 --> 00:28:06.410
Boardroom: And it's kind of like speaking to a… It's almost like, why bother?

192
00:28:06.630 --> 00:28:22.909
Boardroom: Except, the third reason why I started to cry is that it's not just our lives, it's the police officers' lives, it's everyone's lives, and it's the precedent that we are setting by saying, it's okay!

193
00:28:23.010 --> 00:28:31.149
Boardroom: It's okay, we can just continue this way, and if it goes off the cliff, at least everyone will go off together.

194
00:28:31.890 --> 00:28:34.559
Boardroom: I would rather come together.

195
00:28:35.660 --> 00:28:41.800
Boardroom: And prevent this escalation of militarism because of fear.

196
00:28:43.360 --> 00:28:51.180
Boardroom: And perhaps start to recognize the power of love and cooperation mutual aid instead.

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197
00:28:51.970 --> 00:28:53.990
Boardroom: Thanks, Maria.

198
00:28:54.700 --> 00:28:59.260
Boardroom: Anybody else have comments in person? Otherwise we're going to move online.

199
00:29:00.660 --> 00:29:05.950
Boardroom: Okay. Oh, sorry someone's On their way.

200
00:29:08.070 --> 00:29:17.119
Boardroom: This is public comment for the one agenda item, right? OK. So I already said most of what I wanted to say.

201
00:29:17.340 --> 00:29:21.540
Boardroom: At the last council meeting,

202
00:29:23.120 --> 00:29:25.750
Boardroom: How many of you have actually been tear gassed?

203
00:29:28.290 --> 00:29:31.319
Boardroom: If you haven't been tear gassed, I

204
00:29:31.530 --> 00:29:34.619
Boardroom: I think you should think long and hard before.

205
00:29:35.180 --> 00:29:46.390
Boardroom: Considering just casually giving a police department that has violated their own policies multiple times before, as said last time.

206
00:29:46.680 --> 00:29:53.690
Boardroom: weapons that will be turned on college students on high school students.

207
00:29:54.260 --> 00:30:01.649
Boardroom: In Minneapolis and in LA when the community came out to defend.

208
00:30:02.130 --> 00:30:05.589
Boardroom: Their neighbors from the ICE raids.

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209
00:30:05.880 --> 00:30:10.679
Boardroom: Their own police departments were turned on them.

210
00:30:10.980 --> 00:30:11.839
Boardroom: Thank you.

211
00:30:12.050 --> 00:30:20.500
Boardroom: And… They ended up getting tear gassed, not just by ICE, but by their own police departments, whose

212
00:30:21.390 --> 00:30:27.890
Boardroom: Their own city governments had put weapons in the hands of the police department, who then

213
00:30:28.020 --> 00:30:32.030
Boardroom: Got called by ICE to defend ICE,

214
00:30:32.470 --> 00:30:37.320
Boardroom: Who were the invaders in that situation, because that's what ICE are.

215
00:30:37.730 --> 00:30:41.429
Boardroom: They're not part of our community, whereas immigrants are.

216
00:30:43.470 --> 00:30:50.759
Boardroom: They went out and sided with ICE against the community, against the community.

217
00:30:51.060 --> 00:30:55.580
Boardroom: who coming out to defend their neighbors.

218
00:30:55.950 --> 00:30:58.100
Boardroom: From Trump's Gestapo.

219
00:30:59.140 --> 00:31:03.749
Boardroom: Why should we put weapons in the hands of the Berkeley Police Department?

220
00:31:03.860 --> 00:31:07.279

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Boardroom: That will be used against us when we defend our neighbors.

221
00:31:07.710 --> 00:31:09.279
Boardroom: Because they will be.

222
00:31:11.070 --> 00:31:12.120
Boardroom: Great.

223
00:31:16.610 --> 00:31:35.730
Boardroom: Hey, I have a day job, so I just ran over here really quick, but, I just wanted to come here and mention, if, any pharmaceutical drug, any vaccine you've ever taken, has been tested by USP467. What that is, is basically a residual solvent test. I read through a few of the pepper spray, I've never made it myself, but…

224
00:31:35.740 --> 00:31:40.670
Boardroom: It seems like multiple hazardous chemicals are going to be found in there.

225
00:31:40.780 --> 00:31:53.660
Boardroom: They may be using some sort of military exemption to just avoid that. But if we really mean non-lethal, if we really mean that, then at least require that USP 467 is at least tested for whatever product. So thanks.

226
00:31:55.460 --> 00:31:56.560
Boardroom: Thank you.

227
00:31:56.840 --> 00:31:59.670
Boardroom: We are going to move to public comment online.

228
00:32:00.040 --> 00:32:05.449
Boardroom: All right, our first speaker online is Janice Schroeder. Janice, you should be able to unmute.

229
00:32:06.130 --> 00:32:07.000
Janice Schroeder: Thank you.

230
00:32:07.060 --> 00:32:18.299
Janice Schroeder: As a health educator for 49 years, please vote no on rescinding the bans based on the documented harms from exposure to these chemicals.

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231
00:32:18.300 --> 00:32:30.659
Janice Schroeder: I urge you to follow Berkeley's precautionary principle, because it states that a proponent must prove that a program or tool will not endanger health or the environment.

232
00:32:30.940 --> 00:32:46.270
Janice Schroeder: The harmful effects of chemical weapons are far greater on sensitive receptors. Infants, toddlers, elderly, pregnant people, those with physical, mental disabilities, or respiratory illnesses.

233
00:32:46.490 --> 00:32:58.349
Janice Schroeder: CS, pepper spray, and smoke can travel to other than the intended person, and in some cases, a significant distance, harming uninvolved people.

234
00:32:58.610 --> 00:33:09.870
Janice Schroeder: Also, importantly, this resolution states that smoke and pepper spray can be used for crowd control. Adopt the PAP…

235
00:33:09.890 --> 00:33:10.780
Boardroom: Thanks, Donna.

236
00:33:10.780 --> 00:33:12.320
Janice Schroeder: Justice Commission.

237
00:33:12.400 --> 00:33:19.350
Boardroom: Thank you very much for your comments. Yes. Our next speaker is Leslie. Leslie, you should be able to unmute.

238
00:33:23.630 --> 00:33:30.340
Leslie: This is Leslie Firestone. I'm in District 8. I've lived here for more than 10 years. I think that's you, Mr. Humbert.

239
00:33:30.370 --> 00:33:44.870
Leslie: and in Berkeley for decades. I'm absolutely opposed to allowing the police to have chemical weapons again under any circumstances. These are considered weapons of war, as we've heard over and over again. These are…

240
00:33:45.200 --> 00:33:55.290

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Leslie: Not necessary or safe to be used against people. I personally have asthma and I could die if exposed as well as many others could.

241
00:33:56.060 --> 00:33:58.740
Leslie: Gas doesn't stay in one place.

242
00:33:58.890 --> 00:34:03.199
Leslie: Just because something is available isn't a reason to have it in the arsenal.

243
00:34:03.420 --> 00:34:12.259
Leslie: Do not allow this. Stop asking us to show up over and over and tell you no, not now, not ever. Thank you.

244
00:34:12.610 --> 00:34:13.130
Leslie: Thank you.

245
00:34:16.290 --> 00:34:19.449
Boardroom: Our next speaker is Mickey Duxbury.

246
00:34:21.150 --> 00:34:31.969
micky duxbury: Hi, good afternoon. Thank you. I'm a 40-year resident of Berkeley in District 4. I've seen many demonstrations in San Francisco and the East Bay since the early '70s.

247
00:34:31.969 --> 00:34:54.299
micky duxbury: Where the use of tear gas and pepper spray escalated the situation, creating total chaos, with more people running, more people throwing things, and more people highly agitated and freaked out, and more likely to do harm and escalate and not be in a peaceful situation, because they feel as though they're totally bombarded with poison.

248
00:34:54.300 --> 00:35:01.319
micky duxbury: I strongly encourage the City Council to not approve rescinding these restrictions.

249
00:35:01.320 --> 00:35:25.329
micky duxbury: Well, I agree with everyone that said either the University of California or other reputable institution should study the impacts and report back to the council. To not seek additional information right now seems unconscionable to me. I don't know what the rush is. If Berkeley police is concerned about massive demonstrations

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because the president is going to disrupt an election, maybe we should be working.

250
00:35:25.500 --> 00:35:26.809
Boardroom: All right, thank you.

251
00:35:27.030 --> 00:35:32.790
Boardroom: Our next speaker is Cheryl Davila, Cheryl Davila, former councilmember.

252
00:35:34.610 --> 00:35:37.670
Cheryl Davila, Former Councilmember, Founder CEMTF: Hello.

253
00:35:37.730 --> 00:36:01.180
Cheryl Davila, Former Councilmember, Founder CEMTF: You know, I'm on the radio right now, but I'm calling in because I am just so upset that you all didn't vote last time, and now you're having a 4 o'clock meeting to vote on tear gas, when tear gas is a weapon. We do not need it. City of Berkeley does not need it. Our citizens do not need it.

254
00:36:01.670 --> 00:36:04.920
Cheryl Davila, Former Councilmember, Founder CEMTF: The BPD does not need it. That cop…

255
00:36:05.160 --> 00:36:22.099
Cheryl Davila, Former Councilmember, Founder CEMTF: was really being… a pig. We don't need tear gas. It's not something that they can just use against us when they want. And I have another minute, my other… my husband is on my…

256
00:36:22.330 --> 00:36:29.990
Cheryl Davila, Former Councilmember, Founder CEMTF: Computer. So I have another minute from him. And I can't even see my time.

257
00:36:31.300 --> 00:36:32.040
Cheryl Davila, Former Councilmember, Founder CEMTF: But.

258
00:36:32.040 --> 00:36:34.179
Boardroom: Is he available? Can you hear me?

259
00:36:36.300 --> 00:36:40.850

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Boardroom: Hello, is he, is he able to, to speak to say he's ceding you his time?

260
00:36:42.020 --> 00:36:45.379
Cheryl Davila, Former Councilmember, Founder CEMTF: Yeah, hold on a second.

261
00:36:46.140 --> 00:36:52.649
Cheryl Davila, Former Councilmember, Founder CEMTF: I'm also on the radio right now, so I have to leave the radio to get on to this, so hold on a second.

262
00:36:53.070 --> 00:36:58.349
Cheryl Davila, Former Councilmember, Founder CEMTF: Rob, say yes, that you can cede your time. Yes. Did you hear him?

263
00:36:58.640 --> 00:37:01.099
Boardroom: Yes, you have one more minute.

264
00:37:01.100 --> 00:37:12.109
Cheryl Davila, Former Councilmember, Founder CEMTF: Okay. So yeah, tear gas was banned unanimously previously, not just because of COVID, because it's bad for us. It's bad for humanity.

265
00:37:12.190 --> 00:37:22.030
Cheryl Davila, Former Councilmember, Founder CEMTF: No one… we don't need tear gas. We have asthma. COVID and all these things are still upon us.

266
00:37:22.550 --> 00:37:29.720
Cheryl Davila, Former Councilmember, Founder CEMTF: People are still getting sick. More people have asthma these days than ever before.

267
00:37:30.330 --> 00:37:49.750
Cheryl Davila, Former Councilmember, Founder CEMTF: And now we have measles, and we have other things. We don't need to have something that's gonna impact our lungs, our breathing, our air, because you can't contain it to one area. It gets dispersed. So please, please, please, vote no! Vote no! Everyone with me, vote no!

268
00:37:49.750 --> 00:37:50.420
Boardroom: To Terry.

269

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00:37:50.420 --> 00:37:53.080
Cheryl Davila, Former Councilmember, Founder CEMTF: gas. Thank you.

270
00:37:53.080 --> 00:37:57.149
Boardroom: Our next speaker is Barb Atwell.

271
00:37:57.760 --> 00:38:11.000
Barb Atwell, she/her, Ohlone land (Berkeley): Yeah, hi, thank you. My name is Barb Atwell, I'm a resident of District 1, and speaking on behalf of the Berkeley Friends Meeting, also known as the Quakers, we ask that the Council retain the existing ban on chemical weapons.

272
00:38:11.000 --> 00:38:26.029
Barb Atwell, she/her, Ohlone land (Berkeley): and recommend that the Council's motion and recommendation to incorporate the policy language approved and agreed upon by both the Police Accountability Board and the Police Department, it's just wrong. Thank you.

273
00:38:27.040 --> 00:38:30.139
Boardroom: Our next speaker is Marilyn Cleveland.

274
00:38:33.560 --> 00:38:44.039
Marilyn Cleveland, she/her, Berkeley CA,Ohlone Land: Hello! My name is Marilyn Cleveland, and I'm a resident of District one and I'm also a member of the Berkeley friends meeting the Quaker meeting.

275
00:38:44.230 --> 00:38:52.250
Marilyn Cleveland, she/her, Berkeley CA,Ohlone Land: And speak for them. We support the, berkeley,

276
00:38:55.490 --> 00:38:59.450
Marilyn Cleveland, she/her, Berkeley CA,Ohlone Land: The proposal… by the,

277
00:39:00.720 --> 00:39:17.469
Marilyn Cleveland, she/her, Berkeley CA,Ohlone Land: I'm sorry losing my page here by the Peace and Social Justice Commission, and just to repeat their conclusions that Cs and Oc. Are dangerous weapons that are properly considered less lethal, not non-lethal.

278
00:39:17.560 --> 00:39:35.779
Marilyn Cleveland, she/her, Berkeley CA,Ohlone Land: CS and OC are particularly dangerous to the health of persons with disabilities,

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especially respiratory or environmental sensitivities, and also those suffering from mental and behavioral disorders. Approval of chemical weapons such as CS for any use opens the door to the possibility of use…

279
00:39:35.780 --> 00:39:39.159
Boardroom: Thank you, Mary Lynn. Thank you. Your time is up.

280
00:39:39.750 --> 00:39:42.179
Boardroom: Next up is Zipporah Collins.

281
00:39:45.700 --> 00:39:59.609
Zipporah Collins: Yes, I'm Zipporah Collins. I've lived in Berkeley since 1962, and I'm now 87 years old. You have an alternative here on your agenda. There's

282
00:40:00.100 --> 00:40:11.570
Zipporah Collins: I'm speaking against item one A and in favor of item one B, as others have pointed out, retain the ban and.

283
00:40:11.940 --> 00:40:19.840
Zipporah Collins: get… More information on the impacts from a reputable,

284
00:40:20.080 --> 00:40:36.749
Zipporah Collins: institutions such as UC Berkeley, UCSF, or Stanford to study the impacts of tear gas and other chemical weapons and canine support, long-term, short-term, as

285
00:40:37.010 --> 00:40:44.830
Zipporah Collins: An elderly person, I worry about the harms that I will sustain.

286
00:40:45.370 --> 00:40:48.799
Zipporah Collins: It doesn't stay in one place as another speaker stays.

287
00:40:48.800 --> 00:40:53.940
Boardroom: I'm sorry, your time's up. Our next speaker is Steven Roble.

288
00:40:56.810 --> 00:41:00.520
Steven Wrobel: Hi, Steven Roble, District 1.

289
00:41:00.720 --> 00:41:02.849

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Steven Wrobel: Flamethrowers are also a tool.

290
00:41:03.130 --> 00:41:07.030
Steven Wrobel: Should we give the police access to flamethrowers? Because

291
00:41:07.350 --> 00:41:16.519
Steven Wrobel: of all the other straw men's that they're building to burn down like this is absurd. The only people who have spoken in support of this are the police.

292
00:41:17.160 --> 00:41:22.660
Steven Wrobel: This meeting, last meeting, No, none of the actual residents that…

293
00:41:23.280 --> 00:41:25.859
Steven Wrobel: Care for the community? Support this.

294
00:41:25.970 --> 00:41:29.129
Steven Wrobel: So please vote to keep the ban.

295
00:41:29.550 --> 00:41:35.839
Steven Wrobel: because we don't need these chemicals in our air, and we don't need tools of war in our police department. Thanks.

296
00:41:37.170 --> 00:41:39.569
Boardroom: Thank you.

297
00:41:39.990 --> 00:41:41.729
Boardroom: Samir Kanal.

298
00:41:43.020 --> 00:41:51.469
Sameer Kanal: Hello, thanks. My name's Samir Kanal. I serve as a city councilor in Portland, Oregon. I'm one of a group of councilors working on a ban on the use of chemical weapons in the city of Portland.

299
00:41:51.470 --> 00:42:06.220
Sameer Kanal: I'm grateful to the Peace and Justice Commission and all the other testifiers who've come out in support of retaining the ban, and I strongly encourage you to retain the ban on tear gas and smoke. The use of indiscriminate chemical weapons is not just about the people who are ostensibly targeted by the weapons themselves, but the people nearby.

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300
00:42:06.220 --> 00:42:11.310
Sameer Kanal: We have an immigration and customs enforcement facility in Portland. Nearby, there used to be a K-8 school.

301
00:42:11.310 --> 00:42:22.050
Sameer Kanal: Due to the volume of chemical weapons used by federal law enforcement, the school was unusable and had to move. We have a nearby affordable housing facility that's been contaminated, too. As the Commission quoted from Physicians and Human Rights.

302
00:42:22.400 --> 00:42:40.269
Sameer Kanal: Chemical irritants, including both CS and OC, can spread to other people, to affect people other than the intended target. Why back away from something that Berkeley does that is a model for other jurisdictions? I encourage you to retain the ban, and when you do, please know that there are elected officials in other cities looking at your work as a source of strength for our own fights against

303
00:42:40.490 --> 00:42:45.459
Sameer Kanal: for our own fights for a clean environment, for civil rights, for accountability, ultimately for safer communities.

304
00:42:45.460 --> 00:42:48.290
Boardroom: Thank you, Councillor. Thanks. Thank you.

305
00:42:50.430 --> 00:42:53.639
Boardroom: Our next speaker is Cindy Schomben.

306
00:42:55.260 --> 00:43:11.570
Cindy Shamban: Yeah. Hi. My name is Cindy Champion. I'm district four. And, I want to say that I really have not heard a good reason for bringing these weapons back.

307
00:43:12.350 --> 00:43:15.910
Cindy Shamban: They were,

308
00:43:16.860 --> 00:43:25.359
Cindy Shamban: Canceled a number of years ago for good reason, and there's no good reason to bring them back now.

309
00:43:25.900 --> 00:43:34.160

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Cindy Shamban: And I strongly support so much of what other people have said. So I'll stop right there. Thank you.

310
00:43:34.160 --> 00:43:36.180
Boardroom: Thank you.

311
00:43:38.600 --> 00:43:41.049
Boardroom: Our next speaker is Avery Arbaugh.

312
00:43:44.000 --> 00:43:51.689
Avery Arbaugh: Good evening, Council Members, Mayor. My name is Avery Arbaugh. I am the chair of the Berkeley Tenants Union.

313
00:43:51.810 --> 00:44:05.010
Avery Arbaugh: And I'm protested quite a few times in Berkeley in my years living here. And luckily, because of the current laws in place, I have never been tear gassed in Berkeley.

314
00:44:05.130 --> 00:44:12.629
Avery Arbaugh: But I have been tear gassed in other cities. The first time I was ever tear gassed was in Washington, D.C.

315
00:44:12.650 --> 00:44:23.449
Avery Arbaugh: After the Dobbs decision, I and hundreds of peaceful protesters were tear gassed walking through the streets of Washington, D.C.

316
00:44:23.450 --> 00:44:37.090
Avery Arbaugh: And I remember my friend getting hit in the face by a tear gas canister and walking her to the hospital. She still has stitches and a scar today as a result of that.

317
00:44:37.330 --> 00:44:47.419
Avery Arbaugh: I would love to see that not come to pass in Berkeley, and I would love for us to not move towards a future in which that's possible. Thank you for your time.

318
00:44:48.560 --> 00:44:50.090
Boardroom: Our next speaker.

319
00:44:50.470 --> 00:44:52.349
Boardroom: Is Della Luna?

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320
00:44:57.130 --> 00:45:07.889
Della Luna (she/her) Huichun: Yes, thank you. I would like to agree with the previous speaker and say that I haven't heard a single reason why these weapons should be brought back. I did hear the officer in line today say that

321
00:45:08.070 --> 00:45:25.209
Della Luna (she/her) Huichun: these weapons bring distance and time to the officers in these situations, and I just wanted to bring up a scenario in real life with Uvalde, Texas. They had 376 law enforcement officers respond to a school shooting.

322
00:45:25.330 --> 00:45:27.909
Della Luna (she/her) Huichun: And none of the officers breached.

323
00:45:27.970 --> 00:45:32.219
Della Luna (she/her) Huichun: The door, and the shooter was active for 77 minutes.

324
00:45:32.250 --> 00:45:42.590
Della Luna (she/her) Huichun: So the distance and time that that officer was, like, championing didn't actually help in that situation. And then you could ask, how could tear gas help in that situation?

325
00:45:42.590 --> 00:46:01.839
Della Luna (she/her) Huichun: Well, it couldn't. It would have gassed all the children as well. So, I also would like to hear about the technical difficulties that the meeting had, and how it was resolved, and I think that should be disclosed to the public, because it seems a little convenient that with such opposition, the meeting just was working fine, and then was suddenly disrupted without any explanation.

326
00:46:01.840 --> 00:46:03.010
Boardroom: Your time is up.

327
00:46:03.140 --> 00:46:04.090
Boardroom: Thank you.

328
00:46:06.780 --> 00:46:09.380
Boardroom: Next speaker is Leah M.

329

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00:46:13.520 --> 00:46:14.620
Leah M (she/her): Hello?

330
00:46:14.810 --> 00:46:15.810
Leah M (she/her): Can you hear me?

331
00:46:16.800 --> 00:46:17.950
Boardroom: Yes, we can hear you.

332
00:46:17.950 --> 00:46:30.639
Leah M (she/her): Hello, this is Leah Martins. I'm a local pastor. I'm also a leader with Singing Resistance in the East Bay. And last time I came by, I did not sing for you, but I was told that maybe I will be appreciated. So here I go.

333
00:46:30.930 --> 00:46:39.529
Leah M (she/her): We have come with a force more powerful than the tech in our government's hands.

334
00:46:39.710 --> 00:46:47.309
Leah M (she/her): It's our love for our community that will liberate this land.

335
00:46:47.440 --> 00:47:05.460
Leah M (she/her): We have come with a force more powerful than the tech in our government's hands. It's our love for our community that will liberate this land. Please retain the ban. Thank you.

336
00:47:06.580 --> 00:47:08.140
Boardroom: Thank you, Leah!

337
00:47:08.440 --> 00:47:10.070
Boardroom: Thank you for the song.

338
00:47:12.820 --> 00:47:18.580
Boardroom: Our next speaker is the caller with the number ending in 501.

339
00:47:25.940 --> 00:47:29.020
Boardroom: Caller with the phone number ending with 501.

340
00:47:29.390 --> 00:47:30.870

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Boardroom: You should be able to speak.

341
00:47:43.090 --> 00:47:47.169
Boardroom: Caller with the phone number ending in 501, you should be able to.

342
00:47:47.170 --> 00:47:48.720
1510****501: Hello, can you hear me?

343
00:47:48.720 --> 00:47:49.519
Boardroom: Yes, we can hear you.

344
00:47:49.520 --> 00:47:50.100
1510****501: Hello.

345
00:47:50.850 --> 00:48:08.340
1510****501: Oh, great thanks. Yeah. My name is. I'm a resident of Berkeley. I grew up in Oakland. and anyways, I don't know what to say other than why are we even here? Why are we even discussing this issue? No one is. No one is in favor of it, as a previous caller pointed out.

346
00:48:08.780 --> 00:48:12.719
1510****501: Yes, if this is… if this is what we've come to,

347
00:48:13.300 --> 00:48:16.800
1510****501: Yeah, I don't know what to say. How much time do I have, if you don't mind me asking?

348
00:48:17.330 --> 00:48:18.730
Boardroom: 30 seconds left.

349
00:48:19.950 --> 00:48:21.239
1510****501: Okay, great, thanks.

350
00:48:21.900 --> 00:48:22.650
1510****501: Yeah.

351
00:48:22.840 --> 00:48:26.630
1510****501: I support continuing the ban, if it's not clear.

352

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00:48:28.180 --> 00:48:28.970
1510****501: Thank you.

353
00:48:30.350 --> 00:48:33.140
Boardroom: Thank you.

354
00:48:33.800 --> 00:48:45.350
Boardroom: I don't see any other hands raised online, so that will be the end of public comment. We will move to council comments, and starting with Councilmember Taplin. Thank you, good evening, everyone.

355
00:48:46.300 --> 00:48:50.199
Boardroom: You know, people are concerned about the adverse health impacts.

356
00:48:50.480 --> 00:48:51.989
Boardroom: of chemical agents.

357
00:48:52.380 --> 00:48:54.559
Boardroom: And they're worried that Liv's in the van will…

358
00:48:54.940 --> 00:48:57.820
Boardroom: Impede their ability to participate in enforcement activities.

359
00:48:58.100 --> 00:49:00.509
Boardroom: That's not what's being proposed tonight.

360
00:49:00.710 --> 00:49:05.730
Boardroom: And I don't subscribe to some of the doomsday scenarios, but

361
00:49:07.310 --> 00:49:12.959
Boardroom: I think it's… I think the tactical utility is opaque to people in the community.

362
00:49:13.550 --> 00:49:24.189
Boardroom: So whatever happens tonight, I am happy to work with the department, the union, the PAB, and the community to better understand special response and the needs of that area of operation.

363
00:49:27.520 --> 00:49:30.050
Boardroom: I look forward to hearing from my colleagues. Thank you.

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364
00:49:30.690 --> 00:49:36.590
Boardroom: Thank you. Councilmember, councilmember, Kesarwani folks, please.

365
00:49:37.410 --> 00:49:54.549
Boardroom: Thank you very much, Madam Mayor, and I want to thank the public for sharing their comments tonight, and I know this has dragged on, and I'm glad that, you know, I hope we can have an up-or-down vote tonight. I know we will. So I… and I want to thank my colleagues for attending again, because I know it's not easy to

366
00:49:54.680 --> 00:50:02.380
Boardroom: to get here at 4 Pm. And I especially want to thank Chief Lewis, Deputy Chief Tate and Captain Okies.

367
00:50:02.380 --> 00:50:18.440
Boardroom: for being here and your service to this city. I also want to acknowledge the officers who are here who serve our community. And you know, when we were putting this item together, I was thinking about our officers.

368
00:50:18.670 --> 00:50:29.129
Boardroom: Who, you know, they are always there, whether it's a noise disturbance or somebody who, who you think may may be armed.

369
00:50:29.730 --> 00:50:36.950
Boardroom: And you know, as has been said, this is a less lethal tool. This is about

370
00:50:36.990 --> 00:50:56.140
Boardroom: trying to protect life. Order. And, you know, I want to talk about asthma, because I agree with the public commenters who are saying tear gas should not be used ever in a crowd control situation. That is exactly what this item spells out very clearly.

371
00:50:56.140 --> 00:51:02.310
Boardroom: So the debate we are having tonight is not about that. We all agree, I think it's unanimous.

372
00:51:02.450 --> 00:51:09.030
Boardroom: That is not what is up for debate tonight. What we are asking for is narrowly tailored.

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373
00:51:09.180 --> 00:51:17.580
Boardroom: This is for the special response team. Folks, it's not appropriate to yell out when people are speaking. Please let the council members speak. Who put their lives on the line

374
00:51:18.060 --> 00:51:29.520
Boardroom: for critical, life-threatening incidents, and we're talking about 3 in this case. We're talking about a barricaded subject. This can be an armed, barricaded subject in an enclosed area.

375
00:51:30.390 --> 00:51:34.120
Boardroom: Potentially an active shooter in a classroom.

376
00:51:34.400 --> 00:51:43.870
Boardroom: Serving a high-risk warrant when a subject is actively threatening death or serious injury to officers or civilians.

377
00:51:44.300 --> 00:51:57.090
Boardroom: Or hostage situations. This is somebody with a gun to somebody's head in our community. No, it doesn't happen every year, it doesn't happen 6 times a year. We shouldn't have to meet a frequency threshold to save somebody's life.

378
00:51:57.310 --> 00:52:11.309
Boardroom: It happened… it was used once for a barricaded subject in 40 years. Well, to me, it is worth my political capital to save that person's life. I am asking my colleagues to put politics aside.

379
00:52:11.310 --> 00:52:21.240
Boardroom: And think about the possible future life that could be saved if we allow a less lethal tool for a special response team.

380
00:52:21.300 --> 00:52:33.700
Boardroom: And I believe the officer said that he's not aware of any jurisdiction in the country that doesn't allow a special response team to use a less lethal tool like this. We're not aware of any city in the Bay Area

381
00:52:33.700 --> 00:52:42.239
Boardroom: You know, the chief has said that I have asked her. So our only goal is to ensure in these low likelihood situations.

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382
00:52:42.520 --> 00:52:54.090
Boardroom: that our special response team has a less lethal tool. All three tools that we're talking about tonight remain governed by Policy 300 on use of force.

383
00:52:54.150 --> 00:53:11.640
Boardroom: Policy 303 on control devices and techniques, and Policy 428 on First Amendment assemblies. The proposal now reflects agreed-upon language negotiated by the Police Accountability Board and the Berkeley Police Department, and, you know, for those of you who

384
00:53:11.640 --> 00:53:17.329
Boardroom: took the time, who bothered to read the report. We talked about how the prior

385
00:53:17.340 --> 00:53:28.810
Boardroom: body, the Police Review Commission, actually supported the use of tear gas for the Special Response Team. That was a vote of, I believe it was 7-1-0, but we can check the report to see what that vote was.

386
00:53:29.210 --> 00:53:39.789
Boardroom: So, for the purposes of discussion, I would like to move Councilmember Blackaby's version of the resolution, and I did have one additional clause. This is around

387
00:53:39.790 --> 00:54:04.389
Boardroom: What we talked about in the report. I want to make it really clear about the reporting. So I'll just read off. This is an additional clause, so it's be it further resolved that upon the posting of any public summary required under policy 428, section 428.14 C. Or California Penal Code, section 13652.1. The Berkeley Police Department shall notify the city manager

388
00:54:04.390 --> 00:54:16.789
Boardroom: who shall provide that information to the City Council and to the Police Accountability Board within 10 days of such a notice. That language was in the report, but it wasn't in the resolution, so I just want to make that clear. That's the motion.

389
00:54:16.960 --> 00:54:24.010
Boardroom: Second. Thank you very much, and I respect differences of opinion, and I do look forward to hearing from my colleagues.

390

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00:54:24.530 --> 00:54:41.899
Boardroom: Councilmember Blackby. Thank you, Madam Mayor. Thanks, Councilmember Kesarwani. I too, as my colleagues have said, I appreciate all the advocates, who've come today and in the previous meeting and the meetings before that, to speak out against the broad use of tear gas.

391
00:54:42.010 --> 00:54:55.699
Boardroom: including for crowd control, especially those of you who shared personal experiences of being exposed to tear gas and what that's like. You're right. I can't speak to that, and I appreciate that testimony. And I agree with you.

392
00:54:55.940 --> 00:54:57.040
Boardroom: You're right.

393
00:54:57.400 --> 00:55:02.859
Boardroom: We absolutely should not allow indiscriminate use of tear gas, especially for crowd control.

394
00:55:03.390 --> 00:55:08.649
Boardroom: The good news is, as Councilmember Kesarwani mentioned, that's not What's being proposed today?

395
00:55:09.040 --> 00:55:15.910
Boardroom: Most of our decisions don't easily fit on a bumper sticker. Nuance and context are important.

396
00:55:16.130 --> 00:55:18.640
Boardroom: Details are important.

397
00:55:18.790 --> 00:55:21.269
Boardroom: And this is another one of those occasions.

398
00:55:21.510 --> 00:55:32.409
Boardroom: The primary question for me is, will the narrow use of tear gas in these targeted high-risk situations keep us safer? And in my view, the answer is yes.

399
00:55:32.540 --> 00:55:49.569
Boardroom: In a tense, high-risk situation, what can we do? What can officers do to make it safer for the officers, for the suspects who are being targeted and being apprehended, for members of the public when the risk of violent confrontation is high?

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400
00:55:49.860 --> 00:56:04.499
Boardroom: What other tools should be in the toolbox to resolve these situations without the use of potentially lethal force? I'm open to any and all reasonable tools that will reduce the chance that we'll have a violent confrontation that will lead to loss of life.

401
00:56:04.700 --> 00:56:18.079
Boardroom: No one up here, no one supports the widespread use of tear gas. We are explicitly banning it, as Councilmember Keswani and Councilmember Taplin said. We're explicitly banning it in all other circumstances other than the three narrow carve-outs.

402
00:56:18.120 --> 00:56:30.129
Boardroom: described in the resolution for barricaded subject, for hostage, for high-risk warrant delivery, never for crowd control, never for encampment abatement. And all of us hope this option is absolutely never used.

403
00:56:30.530 --> 00:56:36.490
Boardroom: because it would mean that we don't have officers and members of the public in these kinds of situations.

404
00:56:37.170 --> 00:56:52.729
Boardroom: But odds are, at some point in the coming months, in the coming years, in the coming decades, this scenario will present itself again. And when it does, in this kind of very narrowly targeted high-risk circumstance, I want, and I think we all should.

405
00:56:52.910 --> 00:57:04.089
Boardroom: Want our police department to be able to resolve it as safely as possible, using the reasonable tools necessary to do that. Of note, as folks have mentioned, no other California city except Berkeley

406
00:57:04.160 --> 00:57:13.070
Boardroom: maintains an outright ban on tear gas in all cases. In fact, if you look at the 20 biggest cities in California.

407
00:57:13.110 --> 00:57:29.820
Boardroom: They all allow tear gas in these narrow height risk scenarios. Los Angeles, San Diego, San Jose, San Francisco, Fresno, Sacramento, Long Beach, Oakland, Bakersfield, Anaheim, Stockton, Riverside, Irvine, Santa Ana, Chula Vista, Fremont, Santa Clarita, San Bernardino, Modesto, Fontana, the list goes on, I checked.

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408
00:57:30.850 --> 00:57:33.810
Boardroom: Not, and the pattern's clear.

409
00:57:34.090 --> 00:57:36.369
Boardroom: In short, Berkeley

410
00:57:36.490 --> 00:57:50.879
Boardroom: wouldn't be, and is not the outlier, by allowing tear gas use in very narrow circumstances, we're currently the outlier by not allowing it. I don't celebrate its use, I don't celebrate the fact

411
00:57:50.950 --> 00:57:52.969
Boardroom: That we have to consider using it.

412
00:57:52.990 --> 00:58:04.909
Boardroom: But in order to protect the public, protect our officers, to attract and retain the very best personnel to come work here in Berkeley for the police department, and feel that they're supported and safe.

413
00:58:04.910 --> 00:58:15.860
Boardroom: to reduce the likelihood of violent confrontations in these three very narrow circumstances, I do support the proposal today. Thank you. Councilmember Traga, folks.

414
00:58:16.330 --> 00:58:23.479
Boardroom: Booing is inappropriate. We will move on to the next person who's speaking. Order.

415
00:58:23.980 --> 00:58:40.690
Boardroom: Councilmember Traigob? I think Councilmember O'Keefe may have been ahead of me, is that right? I don't know who was ahead, but mine has said either 1 or 13. The parliamentarian says that Councilmember Traigob is next, so I don't know. If you would like to go first, Councilmember O'Keefe, you can.

416
00:58:41.550 --> 00:58:52.380
Boardroom: Thank you, madam mayor. I would like to begin by acknowledging everyone's serious effort that has gone into developing safeguards around the use of tear gas.

417
00:58:52.490 --> 00:58:53.639

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Boardroom: Not the least.

418
00:58:54.150 --> 00:58:59.179
Boardroom: the immense work that the office of the Director of Police Accountability

419
00:58:59.320 --> 00:59:07.600
Boardroom: and the Police Accountability Board have done in narrowing the circumstances under which their use would be permissible.

420
00:59:08.110 --> 00:59:14.689
Boardroom: Nevertheless, this proposal, in any form, gives me considerable pause.

421
00:59:15.320 --> 00:59:20.519
Boardroom: There may be circumstances in which the use of tear gas appears justified in the moment.

422
00:59:20.870 --> 00:59:26.169
Boardroom: But Berkeley's own experience Gives me significant reason for caution.

423
00:59:26.460 --> 00:59:35.309
Boardroom: We have seen determinations about whether its use was appropriate come only afterward, when the consequences could no longer be undone.

424
00:59:35.420 --> 00:59:39.370
Boardroom: and community trust, Had already been damaged.

425
00:59:39.960 --> 00:59:45.489
Boardroom: For me, safeguards are most meaningful when they prevent harm.

426
00:59:45.690 --> 00:59:50.470
Boardroom: To begin with, rather than only allowing us to evaluate it afterward.

427
00:59:50.690 --> 01:00:01.099
Boardroom: For these reasons, I cannot support lifting the existing ban on tear gas, and will be voting no, respectfully, on this item.

428

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01:00:01.380 --> 01:00:02.740
Boardroom: Go ahead, Councilmember O'Keefe.

429
01:00:04.860 --> 01:00:06.310
Boardroom: Woo! I like it.

430
01:00:07.310 --> 01:00:20.699
Boardroom: Thank you, Madam Mayor. Earlier speakers have already done a really good job outlining and explaining the extremely narrow circumstances that tear gas is being contemplated. So I want to appreciate that.

431
01:00:20.730 --> 01:00:29.140
Boardroom: I just want to add 2 points to the conversation, just to sort of address some of the themes that we've heard in public comment.

432
01:00:29.280 --> 01:00:43.489
Boardroom: One is many people spoke about how dangerous and harmful tear gas is, and nobody is refuting that as a substance. It's extremely, extremely dangerous. However, the dangers of the gas are actually contemplated in the item's text.

433
01:00:43.710 --> 01:01:03.140
Boardroom: it says that, in addition to, various other requirements, a determination must be made that the risks of deploying it outweigh the risks of not deploying it. So it's acknowledged that it is a risky and violent thing to do. However, the situations where we're contemplating allowing its use are also extremely dangerous.

434
01:01:03.310 --> 01:01:06.400
Boardroom: And in cases like that, I am…

435
01:01:06.800 --> 01:01:11.729
Boardroom: very open to allowing police a non-lethal option to address it.

436
01:01:11.800 --> 01:01:29.849
Boardroom: it makes sense to do that, even though it is very dangerous and caustic. Many, many other people have also talked about, you know, well, we're allowing police to use it here, but they're gonna, they're gonna use it on crowd control. I know they're going to. Many people expressed some version of that.

437

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01:01:29.970 --> 01:01:35.810
Boardroom: And there's just there's no logic to this argument that we can use up here.

438
01:01:36.010 --> 01:01:48.139
Boardroom: We already allow our police to carry guns, which are much more dangerous than tear gas. Could an officer choose to use their gun in a non-authorized way to cause a great deal of harm? Absolutely, they could.

439
01:01:49.550 --> 01:01:51.799
Boardroom: If that happens, God forbid.

440
01:01:52.330 --> 01:02:00.020
Boardroom: We have accountability structures in place, and we would deal with that appropriately. But it… we have to trust our police

441
01:02:00.020 --> 01:02:14.829
Boardroom: to do their jobs and follow the rules that we as the Council lay out for them. If we don't have that trust, we have way bigger problems. So, the item as written is completely reasonable to me, and I'll be voting in favor of the motion.

442
01:02:16.450 --> 01:02:40.850
Boardroom: People, this is not, this is not you at home in front of the television. This is you and council chambers where we're trying to have a meeting, and I want to hear my colleagues and what they have to say. So we have time that's set aside for public comment. We are listening, we're respectful. Believe me, we have sat through hours of comments. I really want to hear my colleagues and understand the arguments that they're making. So I would appreciate it if you would all be respectful.

443
01:02:40.850 --> 01:02:43.040
Boardroom: And be quiet so that we can hear everyone.

444
01:02:43.390 --> 01:03:00.379
Boardroom: Okay. We have Councilmember Bartlett, and then Councilmember Lunapara. The parliamentarians messed up again, so if you would like to speak again, Councilmember Taplin, you can. Yep. But, Councilmember Bartlett first. Thank you. Thank you, Madam Mayor. And, I do want to thank the author for bringing this forward, and thank everyone

445
01:03:00.400 --> 01:03:10.239
Boardroom: For the physicians and the activists and the people who are concerned, I know everyone is doing their darn best to make people safe.

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446
01:03:10.310 --> 01:03:25.930
Boardroom: whatever vantage point they have. I know it's sincere. And I want to say I respect our officers tremendously. I went on a ride-along a few weeks ago, it was a lot of fun. You know, we did a lot of good work, we helped a lot of people, and I'm still haunted by the people we couldn't help that night.

447
01:03:26.110 --> 01:03:34.960
Boardroom: But I did notice that night the amount of goodwill that people felt towards the work we're doing. And that was really, really heartening.

448
01:03:34.960 --> 01:03:46.949
Boardroom: And so that experience taught me that policing is profoundly profoundly human work. It's a human job, and, and our officers walk into situations that are dangerous and painful and complicated.

449
01:03:47.140 --> 01:04:06.690
Boardroom: And impossible a lot of times. And so as a result, I definitely do want to double down on my support for the work you do and for yourselves and give people the training and the staffing technology, the wellness support, and resources that help them do this human work safely and well.

450
01:04:06.690 --> 01:04:23.570
Boardroom: Unfortunately, I don't think tear gas gets us there. So I was there when we banned it, and I remember the pain, that people testified to, that they felt, and the, the seniors inside their homes, there were secondary effects of it. And just the, the sheer emotional.

451
01:04:23.610 --> 01:04:34.369
Boardroom: sort of heft that comes with being impacted by it, and the fear that it generates, as we see now, it's generating tremendous fear. And so.

452
01:04:35.900 --> 01:04:49.760
Boardroom: You know, this is a serious, serious chemical banned at lots of places, tool of warfare, and understand, you know, you, you, it's a very narrow circumstance you contemplate using it, but that same.

453
01:04:50.030 --> 01:04:59.210

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Boardroom: Sort of narrow circumstance and its frequency or its lack of frequency, it kind of makes it work against this, this agenda tonight because.

454
01:04:59.440 --> 01:05:03.630
Boardroom: I have to go explain to my constituents who, to the person.

455
01:05:04.180 --> 01:05:16.669
Boardroom: All of them oppose this, without fail, 100% of them. And if I were to vote for this, I'd have to explain to them why, and it's difficult to make that explanation when it's been used once in 40 years.

456
01:05:17.380 --> 01:05:21.010
Boardroom: Right, it feels like… A waste of goodwill.

457
01:05:21.350 --> 01:05:32.650
Boardroom: when we could use the goodwill for more important things that we need for BPD and for the community. So, for that, I cannot vote for this. I just don't feel the burden's been met to justify

458
01:05:33.060 --> 01:05:37.499
Boardroom: The rank or justify the fear or justify the erosion of goodwill.

459
01:05:38.440 --> 01:05:39.840
Boardroom: Thank you.

460
01:05:40.200 --> 01:05:41.879
Boardroom: Thank you, Councilmember.

461
01:05:43.880 --> 01:05:45.380
Boardroom: Councilmember Luna Parra.

462
01:05:45.830 --> 01:05:47.509
Boardroom: Thank you,

463
01:05:47.840 --> 01:05:54.740
Boardroom: And I want to thank everyone who came to speak today and I want to thank the advocates that

464
01:05:55.240 --> 01:05:59.139

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Boardroom: Put this ban in a place in the 1st place in 2020.

465
01:05:59.740 --> 01:06:19.190
Boardroom: I have yet to see an argument that bringing tear gas back into our city will make our residents safer as a whole. There's article after article about long-term health impacts of tear gas, tear gas getting caught in the wind and harming people far from where it was deployed, tear gas being deployed improperly, and tear gas being used to crush dissent.

466
01:06:19.390 --> 01:06:28.160
Boardroom: Tear gas is not a reasonable tool. It is banned in international warfare, but they are still commonly used against Americans by their own law enforcement agencies.

467
01:06:28.420 --> 01:06:45.849
Boardroom: I also want to push back on the idea that the tear gas ban was a temporary pandemic-era policy. Even today, almost 6 years later, we still have people getting COVID, we still have people who are immunocompromised by something other than COVID, and we still should not have to worry that we could be inadvertently tear gassed while walking down the street.

468
01:06:46.610 --> 01:07:01.310
Boardroom: Tear gas is not a precise tool. Tear gas guns do not have a manual setting that controls the distance it is fired. Once deployed, the air can carry it for blocks. So even if BPD only deploys it in situations deemed necessary, it is very likely that it will quickly spread and harm others.

469
01:07:01.710 --> 01:07:09.569
Boardroom: While tear gas is considered less lethal, many people have been killed or seriously injured from being struck directly by a tear gas canister launched at high velocity.

470
01:07:09.900 --> 01:07:17.950
Boardroom: As resistance to the Trump administration continues to grow, adopting these changes would send a clear and disturbing message about our city council's priorities.

471
01:07:18.140 --> 01:07:30.489
Boardroom: Even with the amendments made in the supplemental, passing this item tonight will still deter people from speaking out, from going to protests, and defending their rights. To me, it is clear that the risks far outweigh any possible benefits. Thank you.

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472
01:07:34.050 --> 01:07:45.839
Boardroom: Thank you, Councilmember. Councilmember Taplin, did you have something to add? Yes, thank you very much. And I understand the rationale of my fellow councilmembers.

473
01:07:46.350 --> 01:07:49.120
Boardroom: Kasarani and Blackaby and Vice Mayor O'Keefe.

474
01:07:49.400 --> 01:08:02.410
Boardroom: I… you know I try to understand how each tool works and what it's for, but I, you know, I need the community to understand, and as a city, you know, we have a new PAB director, we have a new PAB,

475
01:08:02.410 --> 01:08:25.529
Boardroom: It's very important that we leverage that infrastructure to help the community understand what's being proposed and to bring them along, you know, and it, it might take time, but I think, I think that there is will to do that, but it is a major decision and it's important that we as a city evaluate it very carefully and we take our time with it and we because people don't understand what our options are.

476
01:08:25.529 --> 01:08:33.150
Boardroom: or whether there are alternatives. And I agree with Council Member Laparra. People are going to see this and they're going to second guess our ability to exercise speech.

477
01:08:33.279 --> 01:08:41.369
Boardroom: And people… You know, bad actors around the country are gonna weaponize that against us, and they're gonna…

478
01:08:41.819 --> 01:08:46.280
Boardroom: You know, I think we just have to be really careful what the message it sends, and

479
01:08:47.120 --> 01:08:51.330
Boardroom: In order for… in order for us to land this policy.

480
01:08:51.520 --> 01:08:54.829
Boardroom: It needs to be crystal clear to every stakeholder.

481
01:08:55.050 --> 01:08:58.849

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Boardroom: Why this is a tactical necessity.

482
01:08:59.390 --> 01:09:03.999
Boardroom: And… Why there's nothing else.

483
01:09:08.720 --> 01:09:10.429
Boardroom: That's my granddaughter.

484
01:09:10.840 --> 01:09:12.100
Boardroom: Watermelon.

485
01:09:12.279 --> 01:09:14.120
Boardroom: So… Okay.

486
01:09:14.790 --> 01:09:18.399
Boardroom: I think, you know, we'll take the vote, and I think the work will continue.

487
01:09:18.830 --> 01:09:20.960
Boardroom: And I'm happy to be involved in that work.

488
01:09:21.880 --> 01:09:24.569
Boardroom: But I think tonight is not the night that

489
01:09:24.729 --> 01:09:38.289
Boardroom: we take this action. Councilmember Humbert is online. I'm sorry, Councilmember. I know you did raise your hand at one point, so I want to make sure you get a chance to speak. Folks, please.

490
01:09:38.899 --> 01:09:40.660
Boardroom: Thank you. Go ahead.

491
01:09:42.290 --> 01:09:44.660
Mark Humbert: Mayor, Madam Mayor, you're calling on me.

492
01:09:45.020 --> 01:09:46.450
Boardroom: Yes, council member.

493
01:09:46.700 --> 01:09:49.250
Mark Humbert: Thank you. Can you hear me clearly?

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494
01:09:49.250 --> 01:09:50.580
Boardroom: Yes, we can.

495
01:09:50.580 --> 01:10:01.520
Mark Humbert: Thank you. First, I want to thank the Police Accountability Board, Chief Caetano, Chief Lewis, Deputy Chief Tate, Captain Oakes, Arlo, and everyone at BPD.

496
01:10:02.160 --> 01:10:08.990
Mark Humbert: as well as staff in the city manager's office and everyone who spoke here tonight.

497
01:10:09.150 --> 01:10:25.130
Mark Humbert: I, of course, also want to thank Council Member Kessarwani for bringing this item forward, and Council Member Blackaby for his constructive and extremely helpful recommended amendments. as well as Council Member O'keefe, who offered recommendations at the Public Safety Committee.

498
01:10:25.350 --> 01:10:27.560
Mark Humbert: I know these are tough issues.

499
01:10:27.830 --> 01:10:37.730
Mark Humbert: Indeed, I think some of the toughest issues that we face as a council, and I truly appreciate everyone's dedication and constructive collaborative approach.

500
01:10:37.860 --> 01:10:49.699
Mark Humbert: I believe there's broad agreement on the most important aspect of this proposal before us tonight. Bpd. Will not use tear gas as a means of crowd control period.

501
01:10:49.770 --> 01:11:03.270
Mark Humbert: I'm going to repeat that, because I think there's been confusion on this point. The main proposal under consideration this evening, with which our police department is in agreement, would prohibit the use of tear gas for crowd control.

502
01:11:03.560 --> 01:11:11.589
Mark Humbert: And I agree that this prohibition is the right thing to do. Tear gas is an indiscriminate and potentially very harmful chemical.

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503
01:11:11.660 --> 01:11:22.519
Mark Humbert: that we have seen increasingly abused across the country in our dangerous political climate. I suspect that I'm the only council member on the dais or virtual dais.

504
01:11:22.580 --> 01:11:33.420
Mark Humbert: that has been subjected to tear gas for purposes of crowd control. For me, it was many years ago at a protest on the streets of Washington, DC. This use should never be permitted.

505
01:11:33.830 --> 01:11:39.159
Mark Humbert: Maintaining a prohibition on the use of tear gas for crowd control in Berkeley makes it un-

506
01:11:40.480 --> 01:11:47.690
Mark Humbert: ambiguous. Using it in that way would be a violation of our city policies that would carry severe consequences. Period. Full stop.

507
01:11:47.900 --> 01:12:07.300
Mark Humbert: Now, I'm going to say that I understand where the people who are still against it are coming from. They look at what has been going on with ICE, CBP, and other police departments across the country, and they say that just having these tools on hand creates opportunities for abuse, and therefore we shouldn't have them at all.

508
01:12:08.170 --> 01:12:09.390
Mark Humbert: I disagree with…

509
01:12:10.750 --> 01:12:29.610
Mark Humbert: with this position for multiple reasons. Simple reality is that people committing crimes often have guns, which are often semi-automatic, and sometimes even essentially machine guns, with the application of what are called Glock switches, and law enforcement needs tools to deal with this. I would love to live in a world where no criminal has a firearm.

510
01:12:29.660 --> 01:12:34.379
Mark Humbert: Or other weapon, or explosives, but that's not the world we live in.

511
01:12:34.480 --> 01:12:41.680

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Mark Humbert: again, as the only council member who's been tear gassed. I think I want to emphasize that I do not take these considerations lightly.

512
01:12:42.820 --> 01:12:49.440
Mark Humbert: I also want to say I have a high degree of trust in our police chief and our police department , and I believe BPD is very.

513
01:12:50.610 --> 01:13:06.059
Mark Humbert: dedicated to following our policies. But if some hypothetical police department were determined to violate policies against using tear gas on a crowd, they would also be willing to violate policies against having it in the first place. I have confidence that this will not happen with BPD.

514
01:13:06.570 --> 01:13:13.769
Mark Humbert: Assuming zero trust and presumptive police misconduct is not a reasonable place from which to be making policy.

515
01:13:14.180 --> 01:13:19.369
Mark Humbert: We should base our choices on the needs and conduct of our police department, Bpd.

516
01:13:19.530 --> 01:13:26.029
Mark Humbert: the police department that we rely on here in Berkeley. Not some department somewhere else, or some imagined one.

517
01:13:26.460 --> 01:13:38.440
Mark Humbert: With respect to smoke and pepper spray, I likewise believe that Kesser Wani's item, with Councilmember Blackaby's most recent amendments, represents an appropriate approach with adequate safeguards for the use of these other

518
01:13:38.760 --> 01:13:53.319
Mark Humbert: less… less than lethal tools. I believe that the lower degree of harm and the greater targetability of smoke and pepper spray render them appropriate for the very limited set of circumstances, giving… that these policies spell out.

519
01:13:56.070 --> 01:14:06.959
Mark Humbert: You know, I want to thank everybody who's worked so hard on these policies, and I'm prepared to support the approach in the Kesarwani item with the Blackaby amendments, and supported by FAB and the BPD.

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520
01:14:07.340 --> 01:14:08.220
Mark Humbert: Thank you.

521
01:14:09.850 --> 01:14:11.489
Boardroom: Thank you, Councilmember.

522
01:14:12.140 --> 01:14:37.120
Boardroom: I want to agree with Councilmember Taplin's sentiments that now is not the time. I think it's really important to take a look at where we are in our history. We have a federal government who has been sending officers after unarmed civilians. We've seen the use of tear gas being abused across the country and yet we're having a conversation right now about lifting a ban on tear gas that

523
01:14:37.120 --> 01:14:39.380
Boardroom: we have here in our city.

524
01:14:39.380 --> 01:14:45.669
Boardroom: I want to make sure it's really clear that, you know, I don't think that our police officers are going to misuse this.

525
01:14:45.710 --> 01:15:09.049
Boardroom: I also went on a ride along recently, was just there last Friday. And one of the things that I was really proud of is that they were talking about a situation in which they needed to use de-escalation tactics and they were able to be successful without having to use tear gas. I think it's really important that we as the city of Berkeley continue to uphold our values.

526
01:15:09.050 --> 01:15:15.669
Boardroom: around this, I think it's something to be proud of. We oftentimes like to brag about how we're the first in the country to do things.

527
01:15:15.670 --> 01:15:25.980
Boardroom: And this is a way that I see us leading across the country. As was stated before, not only by people who are coming to public comment, but also by Councilmember Lunapara.

528
01:15:25.980 --> 01:15:30.969
Boardroom: This is considered a weapon of war. It is literally banned.

529

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01:15:31.110 --> 01:15:45.119
Boardroom: And it's… we are not allowed as a country to use this in warfare, and yet we use it on our civilians. I understand… I understand the concerns that people have around protecting our officers and making sure that they're kept safe.

530
01:15:45.120 --> 01:15:53.849
Boardroom: And I'm not convinced that we're in a situation that is a drastic need, that we don't have other tools that could fulfill that need.

531
01:15:53.850 --> 01:16:01.969
Boardroom: I'm really not seeing the urgency. I'm disappointed, honestly, that we're having this conversation right now with this current historical context.

532
01:16:02.060 --> 01:16:23.370
Boardroom: And I do want to just also, though, acknowledge the work that the Police Accountability Board and our Berkeley Police Department did to come together to try to find a compromise. I do recognize that this is a compromise. And I do want to thank our police department and our chief and DCT and also Captain Okies for being here, for presenting, for the work that you do.

533
01:16:23.370 --> 01:16:31.190
Boardroom: I have immense amount of respect. It is not an easy job, and you do put your lives on the line every single day, and I'm grateful for that.

534
01:16:34.830 --> 01:16:42.999
Boardroom: I want to thank everyone for being here. I recognize that a 4 Pm. Meeting is not the best time to have this conversation, and in special meetings

535
01:16:43.000 --> 01:16:56.739
Boardroom: Scheduling-wise, I recognize our council is trying to hear this as soon as possible. Believe me when I say I wish we had not had technical difficulties last meeting. I would have preferred to be able to vote on this and have that conversation be finished.

536
01:16:56.740 --> 01:17:06.090
Boardroom: But we are here this evening, and so if it wasn't clear, I will be voting no, on this item. So, thank you all.

537

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01:17:10.650 --> 01:17:13.859
Boardroom: So, I, I think we should take the roll on it.

538
01:17:15.200 --> 01:17:21.370
Boardroom: All right. On the motion, Councilmember Kesarwani? Yes. Councilmember Taplin? No.

539
01:17:21.760 --> 01:17:25.039
Boardroom: Bartlett? No. Traguff? No.

540
01:17:25.370 --> 01:17:27.040
Boardroom: O'Keefe? Yes.

541
01:17:27.210 --> 01:17:28.670
Boardroom: Blackaby? Yes.

542
01:17:29.290 --> 01:17:30.700
Boardroom: Una Parra? No.

543
01:17:31.310 --> 01:17:32.320
Boardroom: Humbert?

544
01:17:32.320 --> 01:17:33.100
Mark Humbert: Yes.

545
01:17:34.120 --> 01:17:35.989
Boardroom: Mayor Ishii? No.

546
01:17:36.770 --> 01:17:38.070
Boardroom: Motion fails.

547
01:17:48.480 --> 01:18:01.310
Boardroom: Motion to adjourn. Thank you. So moved. There's a motion to adjourn. Is there a second? Second. I'm sorry to interrupt. How would the council like to dispose of item 1B? Oh, yes.

548
01:18:01.700 --> 01:18:05.119
Boardroom: I move to take no action. Second.

549
01:18:05.560 --> 01:18:19.719

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Boardroom: On the motion, Councilmember Keselani? Yes. Taplin? Yes. Bartlett? Yes. Tragop? Yes. O'Keefe? Yes. Blackaby? Yes. Munapara? Yes. Humbert?

550
01:18:19.990 --> 01:18:20.780
Mark Humbert: Yes.

551
01:18:20.780 --> 01:18:21.890
Boardroom: Mayor Ishii.

552
01:18:22.310 --> 01:18:23.400
Boardroom: Yes.

553
01:18:24.790 --> 01:18:35.899
Boardroom: And, is there another motion to adjourn? So moved. Second. All right, can we take the roll on that, please? To adjourn, Councilmember Kesarwani? Yes. Taplin? Aye. Bartlett?

554
01:18:36.420 --> 01:18:41.950
Boardroom: Tragop? Aye. O'Keefe? Yes. Blackaby? Yes. Luna Parra? Yes.

555
01:18:42.190 --> 01:18:43.250
Boardroom: Humbert?

556
01:18:43.870 --> 01:18:44.320
Mark Humbert: Yes.

557
01:18:44.320 --> 01:18:48.140
Boardroom: Mayor Ishii. Yes. Meeting is adjourned. Thank you everyone.

558
01:18:54.940 --> 01:18:58.139
Boardroom: We will be back for our regular meeting at 6 PM.

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